

	must allege facts “averred as carefully and with as much detail as the facts which constitute the cause of action and which are alleged in the complaint.”). A plaintiff can demur to an answer on the grounds that, inter alia, the answer does not state facts sufficient to constitute a defense. (Code Civ. Proc. § 430.20(a).) “Generally speaking, the determination whether an answer states a defense is governed by the same principles which are applicable in determining if a complaint states a cause of action.” (South Shore Land Co. v. Petersen (1964) 226 Cal. App. 2d 725, 732.) A determination of the sufficiency of an answer requires an examination of the complaint because the adequacy of the answer is with reference to the complaint it purports to answer. (Id. at 733.) Here, Plaintiff generally demurs to Defendants’ 1st and 3rd - 9th affirmative defenses in their First Amended Answer. The Court finds that Defendants adequately plead the ultimate facts to support these affirmative defenses. In addition, with respect to Plaintiff’s special demurrer, Plaintiff has not shown that the affirmative defenses are so confusingly pled that they cannot determine what issues Defendants are raising. (See Khoury v. Maly's of Calif., Inc. (1993) 14 Cal.App.4th 612, 616.) Plaintiff’s general and special demurrers are overruled. Defendants shall give notice.
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52	<i>Fillman vs. Hodges</i>	(1) RULING ON DEMURRER Defendants George Thomas Hodges, Jr.'s and Jane Wong's general demurrer to Plaintiffs' First Amended Complaint ("FAC") is sustained as to the 2nd and 5th causes of action with 15 days leave to amend, and overruled as to the 1st, 3rd, 4th and 6th causes of action. A demurrer presents an issue of law regarding the sufficiency of the allegations set forth in the complaint. (Lambert v. Carneghi (2008) 158 Cal.App.4th 1120, 1126.) The challenge is limited to the "four corners" of the pleading (which includes exhibits attached and incorporated therein) or from matters outside the pleading which are judicially noticeable under Evidence Code §§ 451 or 452. Although California courts take a liberal view of inartfully drawn complaints, it remains essential that a complaint set forth the actionable facts relied upon with sufficient precision to inform the defendant of what plaintiff is complaining, and what remedies are being sought. (Leek v. Cooper (2011) 194 Cal.App.4th 399, 413.) On demurrer, a complaint must be liberally construed. (CCP § 452; Stevens v. Superior Court (1999) 75 Cal.App.4th 594, 601.) All material facts properly pleaded, and reasonable inferences, must be accepted as true. (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 966-67.) <i>1st cause of action for invasion of privacy</i> The elements of a common law invasion of privacy claim are intrusion into a private place, conversation, or matter, in a manner highly offensive to a reasonable person. (Huntingdon Life Sciences, Inc. v. Stop Huntingdon Animal Cruelty USA, Inc. (2005) 129 Cal.App.4th 1228, 1259.)
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Plaintiffs allege that they had a reasonable expectation of privacy in their enclosed pool area, balconies, and exterior stairways, that Defendants intentionally installed and directed surveillance cameras with audio recording capability at these private areas, that said intrusion was highly offensive, and that as a result, Plaintiffs suffered severe emotional distress, among other things. (FAC, ¶¶ 29-32.)

At the pleadings stage, Plaintiffs' allegations are sufficient. Plaintiffs are not required to plead this cause of action with specificity. Plaintiffs here allege the basic facts to support this claim; their allegations are to be taken as true when deciding the demurrer; thus, the demurrer is overruled to this cause of action.

2nd cause of action for harassment, Civ. Code, § 1708.7

Civ. Code, § 1708.7 provides that in order to state a claim for harassment under this section, the plaintiffs must show either that Defendants violated a restraining order or that Defendants "as a part of the pattern of conduct specified in paragraph (1), made a credible threat with either (i) the intent to place the plaintiff in reasonable fear for his or her safety, or the safety of an immediate family member, or (ii) reckless disregard for the safety of the plaintiff or that of an immediate family member...." (Subd. (a)(3).)

Plaintiffs fail to allege conduct of this nature. As a result, the demurrer to the 2nd cause of action is sustained with 15 days leave to amend.

3rd cause of action for trespass

"The elements of trespass are: (1) the plaintiff's ownership or control of the property; (2) the

defendant's intentional, reckless, or negligent entry onto the property; (3) lack of permission for the entry or acts in excess of permission; (4) harm; and (5) the defendant's conduct was a substantial factor in causing the harm.” (Ralphs Grocery Co. v. Victory Consultants, Inc. (2017) 17 Cal.App.5th 245, 262.)

Plaintiffs allege that on August 11, 2023, Defendants intentionally and without consent entered Plaintiffs’ Property, that they had no legal right or privilege to enter or interfere with utilities servicing the Property, and that Plaintiffs were harmed by the trespass, including loss of water service and emotional distress. (FAC, ¶¶ 38-40.)

Defendants argue that Plaintiffs fail to plead “specific manner of entry by each Defendant, the basis for attributing any plumber’s conduct to Defendants, or the precise acts that allegedly constituted an unlawful entry as opposed to a dispute regarding property access or utilities.” (Demurrer at pg. 10.)

These specific allegations are not required to state a claim for trespass. Plaintiff alleges facts to support each of the elements; thus, the demurrer is overruled to the 3rd cause of action.

4th cause of action for elder abuse

Welfare & Institutions Code section 15610.07 defines abuse of an elder or dependent adult as:

(1) Physical abuse, neglect, abandonment, isolation, abduction, or other treatment with resulting physical harm or pain or mental suffering.

(2) The deprivation by a care custodian of goods or services that are necessary to avoid physical harm or mental suffering.

(3) Financial abuse, as defined in Section 15610.30.

Within this cause of action, Plaintiffs allege, among other things, that Defendants subjected them to “severe mental suffering through intimidation, harassment, covert surveillance with audio recording capability, and unauthorized interference with their home.”

The Court in *Darrin v. Miller* (2019) 32 Cal.App.5th 450, 456, held that “‘treatment’ that is neither physical abuse, neglect, abandonment, isolation nor abduction, can constitute elder abuse if the treatment results in ‘physical harm or pain or mental suffering’ even if the alleged abuser has no responsibility to care for the elder and no control of the elder's property.”

Plaintiffs allege mental suffering, based on Defendants’ “treatment” in their surveillance and audio-recording. The basic facts are pled. Therefore, the demurrer is overruled to this cause of action.

5th cause of action for financial elder abuse

Pursuant to Welfare & Institutions Code §15610.30 “financial elder abuse” occurs when a person or entity “[t]akes, secretes, appropriates, obtains, or retains real or personal property of an elder or dependent adult for a wrongful use or with intent to defraud, or both.” (Subd. (a)(1)). In addition, to impose liability under this section, Plaintiff must establish that “‘the person or entity knew or should have known that this conduct is likely to be harmful to the elder ... adult.” (*Paslay v. State Farm General Ins. Co.* (2016) 248 Cal.App.4th 639, 657 [citing Welfare & Institutions Code § 15610.30(b)].)

Plaintiffs do not allege any sort of “taking” resulting in financial harm. Therefore, Defendants’ demurrer to the fifth cause of action is sustained with leave to amend.

6th cause of action for declaratory and injunctive relief

The elements of declaratory relief are (1) a person interested under a written instrument, (2) actual controversy, and (3) a request for a declaration of rights and duties. (Code Civ. Proc., § 1060; Cardellini v. Casey (1986) 181 Cal.App.3d 389, 395.)

Defendants argue that this cause of action is wholly derivative of Plaintiffs’ other claims. Because Defendants contend that those other claims are not sufficiently pled, their demurrer to this cause of action should be sustained as well.

Given that the Court overrules Defendants’ demurrer to the 1st, 3rd and 4th causes of action, Defendants’ argument fails. The demurrer is also therefore overruled as to the 6th cause of action.

Special Demurrer

The special demurrer is overruled. The FAC is not so confusing that Defendants cannot determine what the claims are and how to respond. (See Khoury v. Maly's of Calif., Inc. (1993) 14 Cal.App.4th 612, 616; Williams v. Beechnut Nutrition Corp. (1986) 185 Cal.App.3d 135, 139.)

(2) RULING ON MOTION TO STRIKE

Defendants George Thomas Hodges, Jr.’s and Jane Wong’s motion to strike portions of Plaintiffs’ First Amended Complaint (“FAC”) is granted in part and denied in part as set forth below.

A court may strike out any irrelevant, false, or improper matter inserted in any pleading or strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule or an order of the court. Code Civ. Proc. § 436. “Irrelevant” matters include: allegations not essential to the claim, allegations neither pertinent to nor supported by an otherwise sufficient claim or a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc. § 431.10(b).) A motion to strike can also strike legal conclusions. (Weil & Brown, Cal. Prac. Guide, Civil Proc. before Trial, ¶ 7:179 (2010).) Conclusory allegations are permitted, however, if they are supported by other factual allegations in the complaint. (Perkins v. Superior Court (1981) 117 Cal.App. 3d 1, 6.)

Punitive Damages

Civil Code § 3294 provides that punitive damages may be awarded in an action for breach of an obligation not arising from contract, if the plaintiff proves by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice. “Malice” means conduct that is intended to cause injury or despicable conduct that is carried on with a willful and conscious disregard of the right and safety of others. (Civ. Code § 3294(c)(1).)

Plaintiffs allege one instance of trespass involving a plumber and shutting off the water supply, and Defendants’ installation of surveillance cameras directed towards Plaintiffs’ property. (FAC, ¶¶ 19-22.) Plaintiffs claim that the reason for this is “to force Plaintiffs to authorize further intrusions onto Plaintiffs’ Property to promote Defendants’ goal of building an AUD[sic] type structure on Defendants Property...” (FAC, ¶ 26.)

This conduct as pled does not rise to the level of malice, as defined in Civil Code, § 3294(c).

The motion to strike the punitive damages claims is therefore granted with 15 days leave to amend.

Attorney Fees

Attorney's fees are recoverable by a party only if specifically provided for by a statute or law, or if authorized by an express agreement between the parties. (Code Civ. Proc., §§ 1021, 1033.5, subd. (a)(10)(A)-(C); Civ. Code, § 1717; see also *Nasser v. Superior Court* (1984) 156 Cal.App.3d 52, 56 ("Absent an agreement or statute, a party is generally precluded from recovery of attorney fees."); *Reynolds Metals Co. v. Alperson* (1979) 25 Cal.3d 124, 127.)

Plaintiffs cite to Welf. & Inst. Code, § 15657 to support their claim for attorney fees, which states that attorney fees shall be awarded if it is proven that the defendant is liable for physical abuse, neglect or abandonment.

Plaintiffs do not allege facts to support physical abuse, neglect or abandonment.

Therefore, the Court grants the motion to strike the claim for attorney fees with 15 days leave to amend.

Elder Abuse / Financial Elder Abuse Allegations

Defendants move to strike paragraphs 42 and 43 of the fourth cause of action and paragraphs 45 and 46 of the fifth cause of action.

The motion to strike is denied as to paragraph 42. Defendants do not show that this is not a proper